



Notice and Acknowledgement of Pay Rate and Payday  
Under Section 195.1 of the New York State Labor Law  
Notice for Exempt Employees

1. Employer Information

Name:

The KL Group, Inc.

Doing Business As (DBA) Name(s):

Johnstone Supply of Central NY  
Johnstone Supply of Rochester  
Johnstone Supply of Syracuse

FEIN (optional):

Physical Address:

77 Halstead St. Suite 3  
Rochester, NY 14610

Mailing Address:

Same as Physical Address

Phone: 585-482-8000

2. Notice given:

- ☒ At hiring  
☐ Before a change in pay rate(s),  
allowances claimed, or payday

3. Employee's pay rate(s): State if pay is

based on an hourly, salary, day rate,  
piece rate, or other basis.

\$2,115.38 Salary

Employers may not pay a non-hourly rate to  
a non-exempt employee in the Hospitality  
Industry, except for commissioned  
salespeople.

4. Allowances taken:

- ☒ None  
☐ Tips \_\_\_\_\_ per hour  
☐ Meals \_\_\_\_\_ per meal  
☐ Lodging \_\_\_\_\_  
☐ Other \_\_\_\_\_

5. Regular payday: Friday \_\_\_\_\_

6. Pay is:

- ☐ Weekly  
☒ Bi-weekly  
☐ Other: \_\_\_\_\_

7. Overtime Pay Rate:

Most workers in NYS must receive at least  
1½ times their regular rate of pay for all  
hours worked over 40 in a workweek, with  
few exceptions. A limited number of  
employees must only be paid overtime at  
1½ times the minimum wage rate, or not at  
all.

This employee is exempt from overtime  
under the following exemption (optional):

8. Employee Acknowledgement:

On this day, I received notice of my pay  
rate, overtime rate (if eligible), allowances,  
and designated payday. I told my employer  
what my primary language is.

Check one:

- ☒ I have been given this pay notice in  
English because it is my primary language.  
☐ My primary language is \_\_\_\_\_, I  
have been given this pay notice in English  
only, because the Department of Labor  
does not yet offer a pay notice form in my  
primary language.

Robert A Brooks

Print Employee Name

[Signature]

Employee Signature

11-9-2021

Date

Kenneth Livingston, President

Preparer Name and Title

The employee must receive a signed  
copy of this form. The employer must  
keep the original for 6 years.

Please note: It is unlawful for an employee  
to be paid less than an employee of the  
opposite sex for equal work. Employers also  
may not prohibit employees from discussing  
wages with their co-workers.

# Employee's Withholding Certificate

OMB No. 1545-0074

- **Complete Form W-4 so that your employer can withhold the correct federal income tax from your pay.**  
► **Give Form W-4 to your employer.**  
► **Your withholding is subject to review by the IRS.**

**2021**

|                                                     |                                                                                                                                                                                                                                                                                                                                       |                              |                                                                                                                                                                                                       |
|-----------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Step 1:</b><br><b>Enter Personal Information</b> | (a) First name and middle initial<br><b>Robert A</b>                                                                                                                                                                                                                                                                                  | Last name<br><b>Brookins</b> | (b) Social security number<br><b>110-62-4254</b>                                                                                                                                                      |
|                                                     | Address<br><b>396 State Route 49</b>                                                                                                                                                                                                                                                                                                  |                              | ► Does your name match the name on your social security card? If not, to ensure you get credit for your earnings, contact SSA at 800-772-1213 or go to <a href="http://www.ssa.gov">www.ssa.gov</a> . |
|                                                     | City or town, state, and ZIP code<br><b>Cleveland NY 13042</b>                                                                                                                                                                                                                                                                        |                              |                                                                                                                                                                                                       |
|                                                     | (c) <input type="checkbox"/> Single or Married filing separately<br><input checked="" type="checkbox"/> Married filing jointly or Qualifying widow(er)<br><input type="checkbox"/> Head of household (Check only if you're unmarried and pay more than half the costs of keeping up a home for yourself and a qualifying individual.) |                              |                                                                                                                                                                                                       |

**Complete Steps 2-4 ONLY if they apply to you; otherwise, skip to Step 5.** See page 2 for more information on each step, who can claim exemption from withholding, when to use the estimator at [www.irs.gov/W4App](http://www.irs.gov/W4App), and privacy.

**Step 2:**  
**Multiple Jobs or Spouse Works**

Complete this step if you (1) hold more than one job at a time, or (2) are married filing jointly and your spouse also works. The correct amount of withholding depends on income earned from all of these jobs.

Do **only one** of the following.

(a) Use the estimator at [www.irs.gov/W4App](http://www.irs.gov/W4App) for most accurate withholding for this step (and Steps 3-4); or

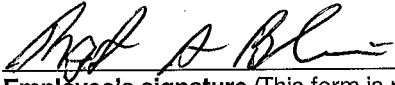
(b) Use the Multiple Jobs Worksheet on page 3 and enter the result in Step 4(c) below for roughly accurate withholding; or

(c) If there are only two jobs total, you may check this box. Do the same on Form W-4 for the other job. This option is accurate for jobs with similar pay; otherwise, more tax than necessary may be withheld . . . . . ☐

**TIP:** To be accurate, submit a 2021 Form W-4 for all other jobs. If you (or your spouse) have self-employment income, including as an independent contractor, use the estimator.

**Complete Steps 3-4(b) on Form W-4 for only ONE of these jobs.** Leave those steps blank for the other jobs. (Your withholding will be most accurate if you complete Steps 3-4(b) on the Form W-4 for the highest paying job.)

|                                                       |                                                                                                                                                                                                                                                   |             |             |
|-------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|-------------|
| <b>Step 3:</b><br><b>Claim Dependents</b>             | If your total income will be \$200,000 or less (\$400,000 or less if married filing jointly):                                                                                                                                                     |             |             |
|                                                       | Multiply the number of qualifying children under age 17 by \$2,000 ► \$                                                                                                                                                                           |             |             |
|                                                       | Multiply the number of other dependents by \$500 . . . . . ► \$                                                                                                                                                                                   |             |             |
|                                                       | Add the amounts above and enter the total here . . . . .                                                                                                                                                                                          | <b>3</b>    | \$ <b>0</b> |
| <b>Step 4 (optional):</b><br><b>Other Adjustments</b> | (a) <b>Other income (not from jobs).</b> If you want tax withheld for other income you expect this year that won't have withholding, enter the amount of other income here. This may include interest, dividends, and retirement income . . . . . | <b>4(a)</b> | \$ <b>0</b> |
|                                                       | (b) <b>Deductions.</b> If you expect to claim deductions other than the standard deduction and want to reduce your withholding, use the Deductions Worksheet on page 3 and enter the result here . . . . .                                        | <b>4(b)</b> | \$ <b>0</b> |
|                                                       | (c) <b>Extra withholding.</b> Enter any additional tax you want withheld each pay period . . . . .                                                                                                                                                | <b>4(c)</b> | \$ <b>0</b> |

|                                    |                                                                                                                                                          |  |                          |
|------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------|--|--------------------------|
| <b>Step 5:</b><br><b>Sign Here</b> | Under penalties of perjury, I declare that this certificate, to the best of my knowledge and belief, is true, correct, and complete.                     |  |                          |
|                                    | Employee's signature (This form is not valid unless you sign it.)<br> |  | Date<br><b>11-9-2021</b> |

|                       |                             |                          |                                      |
|-----------------------|-----------------------------|--------------------------|--------------------------------------|
| <b>Employers Only</b> | Employer's name and address | First date of employment | Employer identification number (EIN) |
|                       |                             |                          |                                      |



Department of Taxation and Finance

**Employee's Withholding Allowance Certificate**

New York State • New York City • Yonkers

**IT-2104**

|                                                                                                                              |                              |                                                   |
|------------------------------------------------------------------------------------------------------------------------------|------------------------------|---------------------------------------------------|
| First name and middle initial<br><b>Robert A</b>                                                                             | Last name<br><b>Brookins</b> | Your Social Security number<br><b>110-62-4254</b> |
| Permanent home address (number and street or rural route)<br><b>396 State Route 49</b>                                       |                              | Apartment number                                  |
| City, village, or post office<br><b>Cleveland</b>                                                                            | State<br><b>NY</b>           | ZIP code<br><b>13092</b>                          |
| Are you a resident of New York City? ..... Yes <input type="checkbox"/> No <input checked="" type="checkbox"/>               |                              |                                                   |
| Are you a resident of Yonkers? ..... Yes <input type="checkbox"/> No <input checked="" type="checkbox"/>                     |                              |                                                   |
| <b>Complete the worksheet on page 4 before making any entries.</b>                                                           |                              |                                                   |
| 1 Total number of allowances you are claiming for New York State and Yonkers, if applicable (from line 19) .....             |                              | <b>1 3</b>                                        |
| 2 Total number of allowances for New York City (from line 31) .....                                                          |                              | <b>2</b>                                          |
| <b>Use lines 3, 4, and 5 below to have additional withholding per pay period under special agreement with your employer.</b> |                              |                                                   |
| 3 New York State amount .....                                                                                                |                              | <b>3 0</b>                                        |
| 4 New York City amount .....                                                                                                 |                              | <b>4</b>                                          |
| 5 Yonkers amount .....                                                                                                       |                              | <b>5</b>                                          |

I certify that I am entitled to the number of withholding allowances claimed on this certificate.

|                                            |                          |
|--------------------------------------------|--------------------------|
| Employee's signature<br><b>[Signature]</b> | Date<br><b>11-9-2021</b> |
|--------------------------------------------|--------------------------|

**Penalty** – A penalty of \$500 may be imposed for any false statement you make that decreases the amount of money you have withheld from your wages. You may also be subject to criminal penalties.

**Employee: detach this page and give it to your employer; keep a copy for your records.****Employer: Keep this certificate with your records.**Mark an **X** in box A and/or box B to indicate why you are sending a copy of this form to New York State (see instructions):

A Employee claimed more than 14 exemption allowances for NYS ..... A ☐

B Employee is a new hire or a rehired ... B ☐ First date employee performed services for pay (mm-dd-yyyy) (see instr.):

Are dependent health insurance benefits available for this employee? ..... Yes ☐ No ☐

If Yes, enter the date the employee qualifies (mm-dd-yyyy):

|                                                                                                                                      |                                |
|--------------------------------------------------------------------------------------------------------------------------------------|--------------------------------|
| Employer's name and address (Employer: complete this section only if you are sending a copy of this form to the NYS Tax Department.) | Employer identification number |
| <br><br>                                                                                                                             |                                |

**Instructions****Changes effective for 2021**

Form IT-2104 has been revised for tax year 2021. The worksheet on page 4 and the charts beginning on page 5, used to compute withholding allowances or to enter an additional dollar amount on line(s) 3, 4, or 5, have been revised. If you previously filed a Form IT-2104 and used the worksheet or charts, you should complete a new 2021 Form IT-2104 and give it to your employer.

**Who should file this form**

This certificate, Form IT-2104, is completed by an employee and given to the employer to instruct the employer how much New York State (and New York City and Yonkers) tax to withhold from the employee's pay. The more allowances claimed, the lower the amount of tax withheld.

If the federal Form W-4 you most recently submitted to your employer was for tax year 2019 or earlier, and you did not file Form IT-2104, your employer may use the same number of allowances you claimed on your federal Form W-4. Due to differences in federal and New York State tax law, this may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers.

For tax years 2020 or later, withholding allowances are no longer reported on federal Form W-4. Therefore, if you submit a federal Form W-4 to your

employer for tax year 2020 or later, and you do not file Form IT-2104, your employer may use zero as your number of allowances. This may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers.

Complete Form IT-2104 each year and file it with your employer if the number of allowances you may claim is different from federal Form W-4 or has changed. Common reasons for completing a new Form IT-2104 each year include the following:

- You started a new job.
- You are no longer a dependent.
- Your individual circumstances may have changed (for example, you were married or have an additional child).
- You moved into or out of NYC or Yonkers.
- You itemize your deductions on your personal income tax return.
- You claim allowances for New York State credits.
- You owed tax or received a large refund when you filed your personal income tax return for the past year.
- Your wages have increased and you expect to earn \$107,650 or more during the tax year.

POST-OFFER SELF-IDENTIFICATION FORM

Name: Robert A Brooks

Date: 11-9-2021

Johnstone Supply is an Equal Opportunity Employer committed to the policies and principles of Non-Discrimination and Affirmative Action.

**GENDER:** (Check one)

☒ Male ☐ Female

**RACE/ETHNICITY:**

Are you Hispanic or Latino? Yes ☐ No ☒

If you answered "No" to the question "Are you Hispanic or Latino?" please check the applicable race box (check one):

- |                                                                             |                                                                                                                                            |
|-----------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> White (Not Hispanic or Latino)          | <input type="checkbox"/> American Indian or Alaska Native (Not Hispanic or Latino)                                                         |
| <input type="checkbox"/> Asian (Not Hispanic or Latino)                     | <input type="checkbox"/> Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino)                                                |
| <input type="checkbox"/> Black or African American (Not Hispanic or Latino) | <input type="checkbox"/> Two or More Races – All persons who identify with more than one of the above five races. (Not Hispanic or Latino) |

If you selected "Two or More Races" please identify the race with which you primarily identify:

- |                                                                             |                                                                                             |
|-----------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| <input type="checkbox"/> White (Not Hispanic or Latino)                     | <input type="checkbox"/> American Indian or Alaska Native (Not Hispanic or Latino)          |
| <input type="checkbox"/> Asian (Not Hispanic or Latino)                     | <input type="checkbox"/> Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino) |
| <input type="checkbox"/> Black or African American (Not Hispanic or Latino) |                                                                                             |

**VETERAN STATUS:** (Check all that apply)

☒ I am **not** a veteran under any of the categories below. **OR** I am **not** a veteran of the U.S. Armed Forces.

- ☐ I am a **Disabled Veteran** – (1) A veteran of the U.S. military, ground, naval or air service who is entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs, or (2) A person who was discharged or released from active duty because of a service-connected disability.
- ☐ I am a **Recently Separated Veteran** – Any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S. military service.

Enter Date of Separation: \_\_\_\_\_

- ☐ I am an **Armed Forces Service Medal Veteran** – Any veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.
- ☐ I am an **Other Protected Veteran** – A veteran who served on active duty in the U.S. military, ground, naval or air service during a war or in a campaign or expedition for which a campaign badge has been authorized, under the laws administered by the Department of Defense.

Employee Name: Robert A Brockus

Company Name: Johnstone Supply

## EMPLOYEE DIRECT DEPOSIT AUTHORIZATION AGREEMENT

(Please Complete One Form for Each Deposit Request)

I hereby authorize and request ADP, Inc. hereinafter called ADP, to make payment of any amounts owing to me by initiating credit entries to my account indicated below in the bank named below, hereinafter called BANK, and I authorize and request BANK to accept any credit entries initiated by ADP to such account and to credit the same to such account without responsibility for the correctness thereof.

I authorize and request ADP to effect repayment to ADP for amounts owed it because of a prior erroneous credit initiated to my account.

I further understand that funds will be posted to my account no earlier than check date and that I will not draw funds against my account until I have confirmed that expected funds have been posted to my account.

It is understood that this agreement may be terminated by me at any time by written notification to ADP or BANK. Any such notification to ADP shall be effective only with respect to entries initiated by ADP after receipt of such notification and a reasonable opportunity to act on it. Any such notification to BANK shall be effective only with respect to entries credited to my account by BANK after receipt of such notification and a reasonable time to act on it.

I recognize, acknowledge and accept this service is being provided for my convenience. As such, I agree to hold ADP, their agents, each participating bank and NACHA harmless from any claim incident to the operation of this plan, arising from any act or omission by ADP, their agents and their employees, including without limitation any claim based on alleged loss as a result of non-credit of any deposit, and any claim which may be made by any depositor as a result of the rejection of any of his/her debits because of insufficient funds arising from the failure to credit deposits to his/her account.

### ATTACH VOIDED CHECK OR BANK LETTER AS PROOF OF ACCOUNT NUMBER AND ROUTING TRANSIT NUMBER

In the absence of a voided check or bank letter, I attest that the information below is accurate and reliable.

Routing #: 022000046 Account #: 8620034804

Account Type: (Select Only One)

☒ Checking

☐ Savings

☐ Checking (HSA) Single

☐ Checking (HSA) Family

Deposit Options: (Select Only One)

☒ Deposit ENTIRE Net Pay Amount Balance

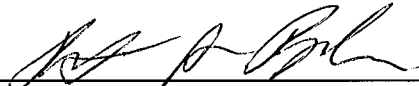
☐ Deposit \$ \_\_\_\_\_ of Net Pay Each Pay Period

☐ Deposit \_\_\_\_\_ % of Net Pay Each Pay Period

☐ Cancel Direct Deposit

For virtual delivery of pay stubs with Net Direct Deposit:

Email address: Brockus 34@Live.com

Employee Signature:  Date: 11-9-2021

(Please Complete One Form for Each Deposit Request)

Employee Name: Robert A Brooks

Company Name: Johnstone Supply

## EMPLOYEE DIRECT DEPOSIT AUTHORIZATION AGREEMENT

(Please Complete One Form for Each Deposit Request)

I hereby authorize and request ADP, Inc. hereinafter called ADP, to make payment of any amounts owing to me by initiating credit entries to my account indicated below in the bank named below, hereinafter called BANK, and I authorize and request BANK to accept any credit entries initiated by ADP to such account and to credit the same to such account without responsibility for the correctness thereof.

I authorize and request ADP to effect repayment to ADP for amounts owed it because of a prior erroneous credit initiated to my account.

I further understand that funds will be posted to my account no earlier than check date and that I will not draw funds against my account until I have confirmed that expected funds have been posted to my account.

It is understood that this agreement may be terminated by me at any time by written notification to ADP or BANK. Any such notification to ADP shall be effective only with respect to entries initiated by ADP after receipt of such notification and a reasonable opportunity to act on it. Any such notification to BANK shall be effective only with respect to entries credited to my account by BANK after receipt of such notification and a reasonable time to act on it.

I recognize, acknowledge and accept this service is being provided for my convenience. As such, I agree to hold ADP, their agents, each participating bank and NACHA harmless from any claim incident to the operation of this plan, arising from any act or omission by ADP, their agents and their employees, including without limitation any claim based on alleged loss as a result of non-credit of any deposit, and any claim which may be made by any depositor as a result of the rejection of any of his/her debits because of insufficient funds arising from the failure to credit deposits to his/her account.

### ATTACH VOIDED CHECK OR BANK LETTER AS PROOF OF ACCOUNT NUMBER AND ROUTING TRANSIT NUMBER

In the absence of a voided check or bank letter, I attest that the information below is accurate and reliable.

Routing #: 021303618 Account #: 7008553100

Account Type: (Select Only One)

Deposit Options: (Select Only One)

☒ Checking

150<sup>00</sup> Deposit ENTIRE Net Pay Amount

☐ Savings

☐ Deposit \$ \_\_\_\_\_ of Net Pay Each Pay Period

☐ Checking (HSA) Single

☐ Deposit \_\_\_\_\_ % of Net Pay Each Pay Period

☐ Checking (HSA) Family

☐ Cancel Direct Deposit

For virtual delivery of pay stubs with Net Direct Deposit:

Email address: Brooks34@live.com

Employee Signature: Robert A Brooks Date: 11-9-2021

(Please Complete One Form for Each Deposit Request)